

Order Sheet
IN THE LAHORE HIGH COURT
Bahawalpur Bench, Bahawalpur
Judicial Department

Diary No. 4857-W-21

M/s. Sharif Construction Company. **Vs.** Civil Judge 1st Class, Lodhran, etc.

<i>Sr. No. of order/ proceedings</i>	<i>Date of order/ Proceeding</i>	<i>Order with signature of Judge, and that of Parties' counsel, where necessary</i>
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02.03.2021. Mr. Mahmood Ahmad Bhatti, Advocate.

The petitioner has filed Revision Petition against order dated 20.02.2021 passed by learned Civil Judge, Lodhran, whereby on application under Section 94 of CPC filed by the respondents, learned Civil Court passed impugned order for implementation of already passed stay order in the manner, specified in the impugned order.

2. The office has raised objection against maintainability of the Revision Petition directly before this Court in view of availability of remedy before the learned Additional District Judge.

3. Learned counsel for the petitioner states that petitioner initially filed Revision in the court of Addl. District Judge, who vide order dated 24.02.2021 has dismissed the same and returned original documents to him for invoking jurisdiction of proper forum by observing that in view of substituted Section of 115 of the CPC, vide Code of Civil Procedure (Punjab Amendment) Ordinance, 2021, the court of Addl. District Judge lacks jurisdiction in this regard. It is contended by the petitioner that as order under Section 94 of the CPC has not been made appealable under Section 104 of the CPC, therefore, Revision against the same is maintainable and if in case the court of Addl. District Judge lacks jurisdiction to entertain the same,

this Court has sufficient power to deal with the same, therefore, the same may be entertained.

4. In the present case, the suit for permanent injunctions was filed by the respondents on 10.02.2021 and on the same date vide Amending Act mentioned above, the right of filing Civil Revision under Section 115 CPC was taken away by substituting the already existing Section with new Section providing as under:-

“Substitution of section 115 of Act V of 1908:- In the Act, for section 115, the following shall be substituted:

“115. Revision.- Any party aggrieved by an order under section 104 passed by the Court of District Judge or Additional District Judge in an appeal against an interlocutory order passed by a Civil Judge or Senior Civil Judge, as the case may be may within thirty days of the said order file a revision to the High Court on an obvious misapprehension of law or in respect of a defect in jurisdiction””

The perusal of the afore-referred Amended Section, which is applicable to the petitioners case, clearly indicates that in suits filed on or after the date Amendment has taken effect i.e., 10.02.2021, Civil Revisions can be entertained only against orders passed by the District Judge or Addl. District Judge in an appeal decided under Section 104 of the CPC against an interlocutory order passed by Civil Judge/ Senior Civil Judge and in no other case, which have been excluded by necessary implication, hence, this Court and the District Courts are no longer vested with the jurisdiction to entertain Civil Revisions against the impugned interlocutory order arising out of suits filed on or after 10.02.2021, therefore, the office objection to the extent of non-maintainability of Revision before this Court in this suit filed on the date of publication of notification of Amendment Ordinance is upheld with

modification in the afore-referred terms with the observation that petitioner, if advised, may seek appropriate remedy.

(Muzamil Akhtar Shabir)
Judge

Zeeshan Khan